

CPC Moot Problem 6

The District Judge at Delhi has listed the preliminary objections, the application concerning continuation of the suit, and Kavya's proposed counterclaim in Civil Suit 118 of 2026. The foreign record, the Bengaluru proceeding, the Delhi pleadings, and the documents reproduced below are before the court. Each side may support or oppose the pending procedural requests, propose different treatment of different prayers or parties, and seek lawful directions. The bench must pronounce a reasoned order on the existing record.

Participants

Name	Description
Rohan Malhotra	Hindu by religion. Married Kavya in Delhi in 2014. Plaintiff 1. Obtained the Singapore judgment and later participated in the second ceremony.
Meera Iyer	Hindu by religion. Participated in a marriage ceremony with Rohan in Chennai in 2025 after the Singapore judgment. Plaintiff 2.
Kavya Malhotra	Hindu by religion. Married Rohan in Delhi in 2014. Defendant and claimant under the proposed counterclaim.
Anay Malhotra	Child of Rohan and Kavya, born in 2017. No custody, guardianship, maintenance, or legitimacy relief concerning Anay is sought in the present hearing.

Assumptions: all three adult participants are Indian citizens and were governed by Hindu law at the time of the events. Every court mentioned has the stated pecuniary competence. The foreign judgment and procedural record are authentic. Family-court allocation, limitation, criminal liability, maintenance, custody, succession, property, constitutional remedies, and conflict-of-laws questions not contained in the CPC syllabus are outside the moot. The personal-law merits may be noticed only to determine the procedural treatment of the foreign judgment and the pleaded relief.

Marriage and Residence

1. Rohan and Kavya married according to Hindu rites in Delhi on 12 February 2014. Both were then ordinarily resident in Delhi. They moved to Singapore in 2018 for Rohan's employment. Anay attended school there from 2019. The spouses held Indian passports throughout.
2. Rohan obtained Singapore permanent-resident status in 2020. His employment declarations from 2021 to 2023 described Singapore as his permanent home. He retained a jointly owned Delhi apartment with his mother and filed Indian income-tax returns as a non-resident. Kavya held a renewable dependant pass. Her Singapore school forms described her local address as "usual residence", while her 2021 and 2022 Indian bank declarations described Delhi as her permanent address.
3. In March 2022, Kavya and Anay came to Bengaluru to stay with Kavya's sister. Kavya says the visit became indefinite only after Rohan refused counselling in June. Rohan says the spouses had agreed that Kavya would return after the school term and that she later abandoned the common home. Messages exchanged in May refer both to "coming back after the holidays" and to "deciding whether Singapore is still our home".

The Singapore Proceeding

4. On 8 August 2022, Rohan petitioned the Family Justice Court of Singapore for dissolution of the marriage. The petition relied on the parties' habitual residence and stated that the marriage had irretrievably broken down through separation and Kavya's conduct. An annexure listed allegations of public accusations, exclusion from the child's school decisions, and refusal to resume cohabitation. It did not identify any provision of Indian matrimonial law.
5. The petition stated that no proceeding concerning the marriage was pending elsewhere. On that date Kavya had sent a signed Bengaluru petition to her advocate, but it was presented to court only on 11 August. Rohan had received, on 4 August, an email from Kavya saying: "My Bengaluru case is ready and will be filed if you continue abroad." He says a threatened proceeding was not a pending proceeding.
6. Kavya was personally served in Bengaluru on 19 August. Through Singapore counsel she entered a "conditional appearance" contesting jurisdiction and stating that she remained domiciled in India. Her affidavit also answered the conduct allegations paragraph by paragraph. It asked that the petition be dismissed, but added that, if the court assumed jurisdiction and found dissolution unavoidable, the dispute should be decided under the law governing the Hindu marriage and all financial consequences should be determined in the same proceeding.

7. On 14 October, the Singapore court rejected the jurisdictional objection. It found that Rohan was domiciled in Singapore and that both spouses had been habitually resident there for more than three years before separation. It stated that Kavya's intention after March 2022 did not remove jurisdiction already founded on the marital home. Kavya did not appeal that order.
8. Kavya thereafter filed a financial disclosure, participated in two case-management hearings, and cross-examined Rohan on his income, the dates of separation, and three alleged incidents of public accusation. A case-management memorandum signed by both counsel listed one issue as: "Whether the pleaded conduct establishes breakdown under Singapore law and, if material, cruelty under section 13(1)(ia) of the Hindu Marriage Act." The memorandum began by preserving Kavya's jurisdictional objection. Each side filed an opinion from an Indian-law expert. Rohan's expert treated the alleged course of conduct as capable of constituting mental cruelty; Kavya's expert said the allegations, even if proved, described marital disagreement and unilateral separation rather than the pleaded Indian ground.
9. In February 2023, after the court refused another adjournment, Kavya instructed counsel not to participate in the final oral hearing. The refusal order recorded that medical material explained her inability to travel but not why she could not appear by video. Her counsel remained on record, received the hearing link and Rohan's written submissions, and sent a note asking the court to decide the signed issue list and the two expert opinions if it proceeded. Rohan says Kavya elected to seek a decision on the merits. Kavya says the note protected her position after an unfair refusal and did not invite dissolution.
10. On 27 March 2023, the Singapore court granted an interim judgment of divorce. Under the heading "Applicable basis", it stated that Singapore law authorised dissolution for irretrievable breakdown. It then recorded that, because the parties had joined issue on Indian law, it had also considered section 13(1)(ia) of the Hindu Marriage Act. It found that Kavya's public accusations, unilateral school decisions, and prolonged refusal to resume cohabitation made continued married life unreasonable and "would, taken cumulatively, amount to mental cruelty on the evidence before this Court". A later paragraph stated that the court "need not select between the domestic ground and the alternative analysis because both lead to dissolution". The operative order dissolved the marriage for irretrievable breakdown and did not separately decree relief under Indian law.
11. The judgment also recorded that "no competing matrimonial proceeding was shown to exist when this action commenced". Rohan's counsel had placed Kavya's 4 August email before the court but not the Bengaluru filing receipt dated 11 August. Kavya's November case-management note

supplied the case number and filing date but did not ask to reopen the jurisdiction order. The judgment mentioned the later Indian filing and stated that it did not alter the facts existing on 8 August. The divorce became final on 30 June 2023. Kavya did not appeal in Singapore. She says an appeal would have accepted the very jurisdiction she disputed; Rohan says review and appeal were available without abandoning that objection.

The Bengaluru Proceeding

12. On 11 August 2022, Kavya instituted Matrimonial Petition 884 of 2022 in Bengaluru against Rohan. She pleaded that the parties were Hindus, that the marriage had been solemnised in Delhi, that she was residing in Bengaluru, and that Rohan had withdrawn from her society. She sought restitution of conjugal rights and interim maintenance. The plaint was submitted in duplicate. It disclosed Rohan's threatened Singapore proceeding but did not seek a declaration about any foreign judgment, which had not then been delivered.
13. Rohan appeared under protest in December 2022. He denied withdrawal, relied on the pending Singapore case, and asked the Bengaluru court to defer the petition. The court declined to stop the suit, stating that the foreign court's eventual decision and its effect in India could be addressed when necessary. Evidence on the matrimonial allegations did not begin.
14. After the Singapore judgment became final, Rohan amended his Bengaluru written statement to plead that the marital relationship had ended and that restitution had become unavailable. Kavya replied that the judgment was not conclusive in India. She did not immediately amend her prayer because her application for interim maintenance was then under orders.
15. On 16 January 2025, Kavya applied in Bengaluru to amend her petition. She sought declarations that the Singapore judgment did not determine her marital status in India and that the marriage continued, and an injunction restraining Rohan from representing himself as unmarried. She also sought to add Meera after learning of the ceremony described below. Rohan and Meera opposed the amendment. The application remains undecided. The original restitution petition also remains pending.

The Second Ceremony

16. Rohan met Meera in Singapore in late 2023. Before their ceremony, he gave her the final Singapore judgment and a written opinion from Singapore counsel stating that he was free to marry.

17. On 18 May 2025, Rohan and Meera underwent a Hindu marriage ceremony in Chennai. They signed a declaration to the officiating priest that both were legally free to marry. An application to register the ceremony was not decided because Kavya sent the registrar copies of the Bengaluru pleadings. No relief concerning registration is sought in the present suit.
18. Kavya wrote to Rohan's employer and to two relatives stating that she remained his lawful spouse in India and that the second ceremony had no legal effect. Her letters attached the Bengaluru amendment application and described the Singapore judgment as "obtained by concealment and on a ground unknown to Hindu law". Rohan says the letters created an immediate need to settle status. Kavya says they merely preserved the position already before the Bengaluru court.

The Delhi Suit

19. On 4 March 2026, Rohan and Meera instituted Civil Suit 118 of 2026 at Delhi against Kavya. They rely on the place of the first marriage, the Delhi apartment and family records, and Kavya's letters received by relatives in Delhi. One letter was addressed to Rohan "care of the Delhi matrimonial home"; another was emailed to his Singapore employer and copied to his mother in Delhi. Kavya's bank and electoral records continued to show the Delhi apartment, although she had lived in Bengaluru since March 2022. Rohan was then working in Singapore and Meera was temporarily in Chennai.
20. The plaint seeks declarations that the Singapore judgment is conclusive between Rohan and Kavya and that Kavya may not deny the termination of their marriage in communications concerning Rohan and Meera. It also seeks an injunction restraining Kavya from representing herself to third persons as Rohan's subsisting spouse. Meera pleads that these declarations are necessary to protect the civil status she asserts through Rohan. No declaration directly validating the Chennai ceremony is sought.
21. Kavya objects that the suit concerns relief already sought through her pending Bengaluru amendment; that Rohan could seek determination of the foreign judgment in the earlier proceeding; that Meera's asserted status depends upon a substantive question the Delhi plaint avoids; and that the plaintiffs selected historic addresses and copied correspondence to Delhi to manufacture jurisdiction. Rohan and Meera say Kavya herself used the Delhi matrimonial-home address, continued to claim it in official records, and directed assertions of status to persons there.
22. With her written statement, Kavya sought permission to counterclaim for declarations that the Singapore judgment is not conclusive in India and that her marriage with Rohan subsists. She also seeks an injunction restraining Rohan and Meera from describing their Chennai ceremony as a

valid marriage. Rohan and Meera object that the same proposed relief is pending in Bengaluru, that the counterclaim substantially enlarges the Delhi suit, and that Kavya cannot pursue mutually overlapping claims in both courts.

23. Meera alternatively asks to remain a plaintiff even if the claim between Rohan and Kavya is stayed or transferred. Kavya says Meera was not a party to the Singapore judgment, claims only through Rohan, and has no independent controversy capable of continuing alone.
24. No court has adjudicated the conclusiveness of the Singapore judgment in India. No evidence has been recorded in either Indian proceeding on the spouses' domicile, the foreign hearing, the alleged concealment, or the effect of the second ceremony. The present court has not decided whether any pleading should be rejected, returned, stayed, amended, separated, or tried with another proceeding.

Documents in the Record

The following extracts are agreed to be accurate. Their legal effect is disputed.

Document 1 Singapore Jurisdiction Order

“The petitioner is domiciled in Singapore and the parties maintained their habitual matrimonial residence here for more than three years. The respondent's intention after her departure does not displace jurisdiction. The objection is dismissed.”

Document 2 Singapore Final Reasons

“Singapore law authorises dissolution for irretrievable breakdown. Because the parties also joined issue on Indian law, the Court has considered section 13(1)(ia) of the Hindu Marriage Act. The respondent's public accusations, unilateral school decisions, and prolonged refusal to resume cohabitation would, taken cumulatively, amount to mental cruelty on the evidence before this Court. The Court need not select between the domestic ground and the alternative analysis because both lead to dissolution.”

Document 3 Kavya's Reservation

“The respondent participates in disclosure and case management without abandoning her objection to divorce jurisdiction. Her alternative request that the governing Hindu law be applied if the Court proceeds, and her agreement to an issue concerning section 13(1)(ia), shall not be treated as consent to dissolution or waiver of that objection.”

Document 4 Bengaluru Order

“The foreign proceeding does not presently require this petition to be halted. Any judgment delivered abroad and its effect in India may be addressed on proper pleadings when necessary.”

Document 5 Bengaluru Amendment Prayer

“Declare that the Singapore judgment does not determine the petitioner’s marital status in India; declare that the marriage of 12 February 2014 continues; restrain the respondent from representing himself as unmarried; add Meera Iyer as a respondent.”

Document 6 Present Procedural Order

“The objections to jurisdiction, continuation, parties, and the proposed counterclaim shall be heard together. No conclusion concerning the validity of either ceremony or the matrimonial allegations shall be presumed.”

Limits of the Moot

- The hearing is confined to the CPC syllabus prescribed by the faculty. Hindu personal law may be examined only where its content is necessary to characterise the foreign judgment or the procedural relief claimed.
- Do not invoke criminal law, maintenance, custody, guardianship, succession, property, registration law, constitutional remedies, or special family-court procedure as independent grounds of decision.
- The record is exhaustive. No additional residence, intention, submission, communication, foreign rule, pleading, notice, ceremony, or procedural event may be assumed.